

A responsive pleading is due 30 days after service. (Code Civ. Proc. § 412.20 (a)(3).) As such, a responsive pleading – which includes a motion to strike – was due on or before March 11, 2026. Defendant filed the Special Motion to Strike on March 11, 2026.

Based on the above, the Special Motion to Strike was timely filed and counts as a responsive pleading on file that would negate the ability to enter a default.

Conclusion

Defendant Kalnytskyi's motion to set aside the default is **granted**. The anti-slapp motion constitutes his responsive pleading and is scheduled to be heard on August 21.

9. 9:00 AM CASE NUMBER: C26-00207
CASE NAME: ANDREI ROMANENKO VS. ROMAN KALNYTSKYI
*HEARING ON MOTION IN RE: TO SET ASIDE ENTRY OF DEFAULT AS TO AKRIAN INC AND TO
DISMISS AKRIAN INC FROM THIS ACTION
FILED BY: KALNYTSKYI, ROMAN
TENTATIVE RULING:

Before the Court is Defendant Akrian Inc.'s Motion to Set Aside Default.

Procedural Background

Plaintiff filed the Complaint on January 20, 2026. On May 4, 2026, Plaintiff filed a Proof of Service of Summons indicating that Akrian Inc. was served via substitute service on March 14, 2026. The attached Declaration of Mailing indicates the summons and complaint were mailed on March 16, 2026. Thereafter, on May 5, 2026, Plaintiff sought and obtained entry of default against Akrian Inc. as no responsive pleading had been filed.

On May 13, 2026, Defendant in pro per Roman Kalnytskyi filed the instant motion to set aside entry of default on behalf of Defendant Akrian Inc. The motion sought to set aside the entry of default as well as an order dismissing Akrian Inc. for this action.

Legal Standard

Plaintiff seeks to set aside the dismissal with prejudice entered against him pursuant to California Code of Civil Procedure section 473 (b). "The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

The 'discretionary' provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted,

and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

The 'mandatory' provision relates to times when an attorney admits fault in causing the default. That provision is not at issue here.

Analysis

California law is clear that a corporation "cannot represent itself in court in propria persona but must appear through an agent who is a member of the bar." (*Rogers v. Mun. Court* (1988) 197 Cal.App.3d 1314, 1318) "A corporation cannot represent itself in court, either in propria persona or through an officer or agent who is not an attorney." (*Merco Constr. Engrineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 729 citations omitted.) If a corporation agent, for example an officer or director, attempts to represent the corporation in court proceedings, and s/he is "not an attorney, that person would be engaging in the unlicensed practice of law." (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

In the motion, Mr. Kalnytskyi makes clear that he "is fully aware that under California law, corporations must be represented in court by a licensed attorney." (Motion at 3:7-9.) He then goes on to argue on behalf of Akrian Inc.

As noted by Plaintiff, the Court has already informed Mr. Kalnytskyi that "Defendant Akrian, Inc. must be represented in court by an attorney and Mr. Kalnytskyi cannot represent Akrian, Inc. in court." (July 10, 2026 Order re Special Motion to Strike.) Despite this, Mr. Kalnytskyi continues to attempt to represent and defend Akrian Inc.

As Mr. Kalnytskyi does not have the authority to file this motion on behalf of Akrian, Inc. – the motion is **denied**.

Conclusion

Defendant Akrian, Inc.'s motion to set aside the default is **denied** to the extent the Court can even rule on a motion improperly filed by a lay person on behalf of a corporate defendant.

Mr. Kalnytskyi is again reminded that he must have an attorney represent Akrian, Inc. and that his continued attempts to represent that entity as a non-attorney may subject him to sanctions for the unlicensed practice of law. ("[T]he unlicensed person who practices law is potentially subject to various criminal, civil and contempt sanctions." *Russell v. Dopp* (1995) 36 Cal.App.4th 765, 774.)

10. 9:00 AM CASE NUMBER: MSC22-00199

CASE NAME: MANSELL-MOULLIN VS HOSMER

MOTION TO BE RELIEVED AS COUNSEL AS TO PLTF

FILED BY:

TENTATIVE RULING:

The unopposed motion of **Elizabeth Poppy and Colleen Cleary and the law firm of Burke, Williams & Sorensen, LLP** to be relieved as counsel is **withdrawn** and hearing is **vacated** at the rest of the